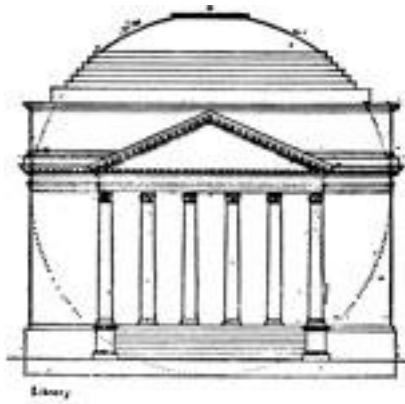




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"SEDITIONOUS DOCTRINES" AND THE "CLEAR AND PRESENT DANGER" RULE*

Part I

By LOUIS B. BOUDIN†

IN his *Free Speech in the United States*,¹ Professor Chafee divides the history of the struggle for free speech and a free press into four epochs represented by four men: John Milton, Sir Thomas Erskine, John Stuart Mill and Oliver Wendell Holmes.

Justice Holmes belongs in this galaxy chiefly as the author of the Clear and Present Danger Rule.² It was around this Rule—its meaning and application—that the struggle for freedom of speech and freedom of the press has raged during our epoch. It is on the meaning and application of this Rule that the question of guilt or innocence turned in the recent case of the Communist Eleven;³ although, as we shall see later there is another, seemingly subsidiary but actually basic rule, that is also involved—a rule which was the outcome of the struggle for civil liberties during the second epoch in Professor Chafee's chronology, which terminated in England as far back as 1792 with the adoption of Charles James Fox's Libel Act.

However, an intelligent discussion of the meaning of the Clear and Present Danger Rule requires a preliminary discussion of the distribution of powers of government between State and Nation in our constitutional system, and the difference in the function of the Supreme Court arising therefrom between convictions for "sedition"

*This article will be published in two parts, the second part to appear in the April, 1952, issue of this Review.

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1. CHAFEE, *FREE SPEECH IN THE UNITED STATES* (1941).

2. First enunciated by Mr. Justice Holmes in *Schenck v. United States*, 249 U.S. 47, 52 (1919).

3. *Dennis v. United States*, 341 U.S. 494 (1951).

coming from State courts and those coming from the lower Federal courts. A failure to differentiate between these two classes of cases and an indiscriminate citation of the decisions of the Supreme Court from these classes has led to much confusion in this branch of our law. This confusion has received its latest illustration in the *Communist* case, in which counsel for the Government, in their brief before the Court of Appeals have relied mainly on *Gitlow v. New York*⁴ and *Whitney v. California*,⁵ both cases coming from State courts. Neither the opinion of the Court of Appeals,⁶ affirming the conviction, nor any of the opinions in the United States Supreme Court⁷ ascribe to those two cases the weight ascribed to them by counsel for the Government; but, to the extent that they do discuss these cases they fail to make the distinction which we believe to be decisive. The failure to make it has undoubtedly contributed to the result.

Another preliminary observation which we deem it necessary to make is that it will not do to merely dispose of the decisions in the *Communist* case, or similar decisions adverse to civil liberties, by ascribing these decisions to the "reactionary" court of the particular judges who rendered the decisions, or even to the "reactionary" "climate of opinion" in which they are rendered—although there can be little doubt that the "climate of opinion" at the time when a decision is rendered is not without influence upon it. In this connection it is well to bear in mind that Judge Learned Hand who wrote the opinion of the Court of Appeals in the *Communist* case is the same Judge Learned Hand who wrote the decision in the *Masses* case,⁸ which has often been cited as an expression of liberal doctrine in this field. On the other hand, it is also well to remember that this very learned jurist, who has an intimate acquaintance with Maitland and other British historians, has apparently completely forgotten the role which Fox's Libel Act has played in the development of the freedoms protected by our Bill of Rights. The latter, we submit, must be ascribed to the difference in the "climate of opinion" between the calm days of the early phases of World War I and the prevailing hysteria of the post-war period of World War II.

4. 268 U.S. 652 (1925).

5. 274 U.S. 357 (1927).

6. *United States v. Dennis*, 183 F.2d 201 (1950).

7. *Dennis v. United States*, 341 U.S. 494 (1951).

8. *Masses Pub. Co. v. Patten*, 244 Fed. 535 (1917).

Nevertheless, it is our firm conviction, that by and large justices decide cases according to their *legal* lights—dimmed as those may become by prevailing hysteria—as the same may be deduced by a careful analysis of precedents by which they consider themselves bound. It is the purpose of this essay to present such an analysis; and we hope that it will help lead to a clarification of the legal-constitutional problems involved in the question of the limits of the power of Government, particularly the Federal Government, over the written or spoken word, in the discharge of its duty of self-preservation.

I. COMMUNISM IS NOT THE ISSUE

Since the "climate of opinion" is the setting in which the legal questions to be discussed have arisen, one of its aspects needs special consideration. Mr. Justice Jackson commences his opinion in the *Communist Affidavit* case, with the following statement:

If the statute before us required labor union officers to forswear membership in the Republican Party, the Democratic Party or the *Socialist Party*, I suppose all agree that it would be unconstitutional. But why, if it is valid as to the Communist Party?⁹ (Emphasis supplied).

This may be so for the moment, but it wasn't always so—it wasn't so yesterday. And the indications are that it will not be so tomorrow. History proves that reliance upon the fact that the particular "subversives" we are dealing with at the moment are different is a snare and a delusion. Mr. Justice Black, in his opinion in the same case, called attention to the fact that the Jeffersonian Republicans were considered as subversives at the time of the Alien and Sedition laws, as Communists are today—even to the charge that they were a *Fifth Column*. And at the beginning of the present epoch (according to Professor Chafee's chronology) of the struggle for the freedoms guaranteed by the First Amendment, the Socialists were certainly treated no better than Communists. This is particularly true of the postwar period when the hysteria became intensified and was frankly directed against "subversive doctrines".

In January, 1919, the New York State Legislature appointed a committee, known as the Lusk Committee, which was the prototype

9. *American Communications Ass'n v. Douds*, 339 U.S. 382 (1950).

of all the "un-American" committees, State and National, which have followed it since. And in the following year the New York State Legislature expelled five Socialist members of its lower House, the Assembly. The Lusk Committee was interested in all "subversives", but its main effort was directed against the Socialists—and more particularly against the Socialist School, the Rand School. In its report, published in two large octavo volumes comprising more than 2,000 pages, under the title "Revolutionary Radicalism", it set out to prove—and apparently proved to the satisfaction of the Legislature and some prosecuting officials—that the Socialist Party was the most dangerous subversive organization in this country. In reporting upon its activities the Committee pointed with pride to the fact that—

. . . on June 21, 1919, Hon. William McAdoo, Chief City Magistrate issued three search warrants which were directed respectively against the Rand School of Social Science, . . . ; the headquarters of the Left Wing Section of the Socialist Party, . . . ; and the New York city headquarters of the I.W.W. . . . ¹⁰

This is significant, since it shows that the gentlemen of the Lusk Committee were fully aware of the fact that the Rand School was not part of the Left Wing movement within the Socialist Party. But that fact made no difference to the New York legislators—Socialists of all hues looked alike to them. And since the regular organization of the Socialist Party was much the larger one, it gave first place, here as elsewhere in its report, to the Rand School and other regular Socialist organizations. The difference in attitude noted by Mr. Justice Jackson is accounted for by the fact that the Socialist Party has, since the activities of the Lusk Committee, ceased to be a factor in the political or economic life of this country.

It was otherwise when the Socialist Party still played an important role in the political and trade union movement of this country. And so the Lusk Committee devoted its main effort to the Socialist Party, its principal institution for the dissemination of its doctrines, the Rand School, and the labor unions in which Socialists played a prominent role—the Amalgamated Clothing Workers of America and the International Ladies' Garment Workers Union. The report also contained a special chapter on "subversive" schools—among them the Socialist Party Sunday School at Rochester—but the bulk of this long

10. 1 REVOLUTIONARY RADICALISM 20 (1920).

chapter is devoted to the Rand School, whose activities were apparently considered the gravest danger to the "peace and security" of the United States. To create the necessary atmosphere, the Committee surrounded the school with an aura of secrecy. The obtaining of a "search warrant" was in itself a substantial contribution to such atmosphere; and it was enhanced by the use of a large police force and the blowing open of a safe found on the premises. Needless to say, "Large quantities of revolutionary, incendiary and seditious written and printed matter were seized *in each of these three places*."¹¹ (Emphasis supplied).

The Lusk Committee, as it also proudly reported, did not limit itself to investigating seditious activities, but also induced prosecuting officials to take action. Among the actions taken at its behest was one by the Attorney General of the State, who brought a proceeding in the State Supreme Court to annul the charter of the Rand School.¹² Presumably as the result of its activities, the New York Legislature passed a law requiring private schools such as the Rand School to obtain a license from the University of the State of New York; and it provided that no license should be granted for the conduct of any school if it should appear that the instruction proposed to be given included "the teaching of the doctrine that organized government shall be overthrown by force, violence or unlawful means."¹³ This law was attacked by the Rand School as unconstitutional, but was upheld by the Appellate Division of the State Supreme Court.¹⁴

Among the unions classed by the Lusk Committee as "subversive",

11. 1 *id.* at 21.

12. Apparently because of the intervention of Samuel Untermyer, the noted attorney, and his threat of bringing suit in connection with the issuance of the search warrants which he claimed to be illegal, this proceeding was dropped. But not the interest of the Lusk Committee in the Rand School.

13. N.Y. EDUC. LAW § 79 as added by LAWS 1921, c. 667 § 1.

14. *People v. American Socialist Society*, 202 App. Div. 640, 195 N.Y. Supp. 801 (1st Dep't 1922). The question of whether or not the Rand School could be classified as one of the schools among the schools not entitled to a license under this law was not decided in this case, since the Rand School never applied for a license because of its attack on the constitutionality of the statute. This case never reached the New York Court of Appeals, and the question of the subversive character of the Rand School was never decided by the courts, because while the appeal to the Court of Appeals was pending the Republican Party, which had passed the law, was defeated in the elections of 1922 and the Democratic Legislature, under the leadership of Governor Alfred E. Smith, repealed the law. "The cause of liberal education," ruefully remarks Professor Chafee, "was won, not in the courts but at the polls." CHAFEE *op. cit. supra* note 1, at 317.

first place was given to the Amalgamated Clothing Workers of America. In its long report on this union the Lusk Committee said:

Like all of the other subversive organizations its tactics are those of the class struggle. Its ultimate object is to take possession of the industry. Its principles and methods are almost identical with those of the Workingmen's International Industrial Union. It constitutes a typical example of revolutionary industrial unionism, being founded on the One Big Union idea. . . . This organization is in reality an industrial arm of the Socialist Party of America. . . .¹⁵

And of the International Ladies' Garment Workers Union, the Lusk Committee report said:

It is closely affiliated with the Socialist Party of America, and stands for the principles and tactics advocated by the party . . . This Union recognizes the need of educating its members in Economics, Sociology and other cultural subjects so that they may be prepared to conduct and manage the industry if their *program of seizure* is carried out.¹⁶ (Emphasis supplied).

It is hardly necessary to discuss now the "subversive" character of the Amalgamated Clothing Workers and the ILGWU. Mr. David Dubinsky, the President of the latter, has for decades been the most consistent and persistent anti-Communist labor leader in this country.

In order to point the moral as to who or what may be labelled "subversive" in times of hysteria, the subsequent political history of the Rand School and the five Socialist representatives expelled by the New York Legislature in 1920 may be briefly noted. None of the five ever became a Communist. In 1936 a large section of the Socialist Party, principally in New York, known as "The Rand School crowd", considering Mr. Norman Thomas and the majority of the Socialist Party who followed him too far to the left, quit the Socialist Party and organized the Social Democratic Federation, which limited itself to education and propaganda. When this split occurred, only one of the five, Mr. Samuel DeWitt, remained in the Socialist Party, and he shortly thereafter retired from public life. The other four went into the Social Democratic Federation. Of these, Mr. Charles Solomon served for ten years as a New York City

15. 1 REVOLUTIONARY RADICALISM 943 (1920).

16. 1 *id.* at 958.

Magistrate under an appointment from Mayor LaGuardia. Another, Mr. Samuel Orr, is still serving as such Magistrate under a similar appointment. Mr. August Classons is now a spellbinder for the Liberal Party of New York, of which Mr. A. A. Berle, Jr., our former Ambassador to Brazil, is Chairman. Mr. Louis Waldman's last political appearance was as the designee of the Republican organization of his county for the office of District Attorney.

II. THE LIMITED POWER OF THE FEDERAL GOVERNMENT TO PUNISH CRIME OR SUPPRESS VIOLENCE

Turning now from what may be called the political aspects of the problem to the constitutional questions involved, the first thing to be noted is the division of powers between the State and Federal Governments, respectively. And the most important thing to be remembered in this connection is that the Federal Government has no general power to punish crime or suppress violence. It is elementary that under our dual form of government the general subject of crime and suppression of violence—or maintenance of order as the latter is sometimes called—is a power reserved to the States by the Tenth Amendment to the United States Constitution, except in those places where by specific provision of the Constitution the Federal Government has *all* the powers of government, such as the District of Columbia, forts and arsenals. But aside from the general limitation upon the powers of the Federal Government flowing from the limited character of the powers assigned to it by the Constitution, there are certain specific provisions in the Constitution which contain direct limitations upon the power of the Federal Government to suppress violence not amounting to insurrection against the Federal Government. The first of these provisions is contained in Article I, Section 8, which is the basic grant of legislative power to the Federal Government. Among the subjects upon which the Federal Government is granted power to legislate are:

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations.

These provisions are express limitations upon the power of Congress to deal with the subject of crime generally, limiting that power to

offenses committed on the high seas, against the law of nations, and certain offenses injurious to the Government of the United States as such.

Then there is the additional provision in Section 3 of Article III, dealing with the subject of treason, which says:

The Congress shall have Power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.

This, it is submitted, is not merely a limitation on the manner of punishment of the crime of treason. The specific grant of power is, under familiar rules, a limitation upon the general power to deal with the subject of crime. And, as must be noticed here again, the reason for the grant of power is that the offense is one directed against the Government of the United States as such. The scheme of division of constitutional powers is thus clear: Congress has no power to deal with crime generally. And if that were not enough, there is the specific provision dealing with the subject of violence, as distinguished from crime generally, in Section 4 of Article IV, which reads:

The United States shall guarantee to every State in this Union a Republican form of Government, and shall protect each of them against Invasion; and on Application of the Legislature, or of the Executive (when the Legislature cannot be convened) against domestic Violence.

It will thus be seen that, aside from the general provisions which deprive the Federal Government of the right to deal with crime generally, there is a special provision—with a carefully provided double-check—which deprives it of the right to deal with the subject of *violence*. Not only may the Federal Government meddle with that subject only upon the request of the State involved, but the request must come from the Legislature of the State, and only when the Legislature is not in session may it be done upon the request of the Executive of the State. That shows the great care which the framers of the Constitution took to guard against the interference of the Federal Government in the domestic affairs of the States under the pretext—or in the mistaken belief—that it was necessary for the suppression of crime and violence.

That does not mean, of course, that Congress may not deal with

crime incidentally, as an incident of the exercise of some power expressly granted to it. But it does mean that the exercise of such power may not be made a pretext for dealing with crime generally, nor that the subject of *violence* is in a class by itself, so that while the Federal Government may deal with certain crimes either for its own protection or in order to facilitate the exercise of the powers granted to it by the Constitution, *it cannot deal with violence as such*, for that has been expressly withdrawn from its competence—at least when it does not amount to *insurrection* directed against the Federal Government. The subject of violence, short of actual insurrection, being thus specifically excluded from the competence of the Federal Government, it follows of necessity that it is not within the *constitutional competence* of the Federal Government to legislate for the prevention of riots or for the protection of the governmental functions of the States or their subdivisions.

Another thing that must be borne in mind in this connection is that where an Act of Congress trenches upon the rights secured by the First Amendment, it is incumbent upon the Government, in a prosecution under such Act, to show that there was reasonable ground to apprehend the likelihood of the occurrence of the substantive evil which Congress has a right to prevent and which the statute was intended to prevent. Such was the express holding of the Court of Appeals for the Eighth Circuit in the *Dunne*¹⁷ case, to be considered further below.

That does not mean, of course, that the United States cannot protect its own existence or the unhampered exercise of its functions under the Constitution by preventive legislation, any more than that it leaves its citizens without protection against crime or violence, or their property against pillage by riotous mobs. The protection of the citizen and his property is left safely, and *wisely*, to the States. And the Federal Government has sufficient power under various express grants of power, to protect not only its safety but also its normal operations, both in war and peace, from any actual interference as well as from threatened danger. That these laws are sufficient to protect the government when it is engaged in war from any danger arising from the written or spoken word is sufficiently demonstrated by the many prosecutions during World War I for speeches and writings which actually were not intended to inter-

17. *Dunne v. United States*, 138 F.2d 137 (8th Cir.), *cert. denied*, 320 U.S. 790 (1944).

fere with the prosecution of the war but which juries in excess of patriotic fervor found to be so, and the courts have sustained on the theory that they *might* be so. It is sufficient to mention here the most important of these cases—*Debs v. United States*,¹⁸ *Frohwerk v. United States*,¹⁹ and *Abrams v. United States*.²⁰

Indeed, as is shown by the dissents in the Supreme Court in some of these cases, the power actually exerted went beyond that which was necessary to insure the successful prosecution of the war. And the *Masses*²¹ case, as finally determined by the United States Circuit Court of Appeals, proves that the Government has means of preventing even ordinary criticism in times of war under provisions of the Constitution which one would hardly think were enacted for the safety of the Government, such as the power to regulate the post office. Nor is this power of self-preservation limited to wartime, or circumscribed by the war powers of the Government, as is demonstrated by the *Dunne*²² case.

On the other hand, the danger of extending the power of the Federal Government to matters clearly entrusted by the Constitution to the competence of the States is self-evident, since such an extension of power would curtail the legislative powers of the States *pro tanto*—or else expose the citizens of the United States to double punishment for the same offense, a matter not only contrary to the principle underlying the constitutional prohibition against double jeopardy but also abhorrent to our sense of justice and the usage of all civilized nations.²³

The extension of the power of the Federal Government over the

18. 249 U.S. 211 (1919).

19. 249 U.S. 204 (1919).

20. 250 U.S. 616 (1919).

21. *Masses Pub. Co. v. Patten*, 244 Fed. 535 (1917).

22. *Dunne v. United States*, 138 F.2d 137 (8th Cir.), *cert. denied*, 320 U.S. 790 (1944).

23. This is well illustrated in the domain of commerce and the control of aliens. Although the Constitution delimits the power of the Federal and State Governments, respectively, over commerce, by assigning to the former the regulation of interstate commerce and leaving intrastate commerce to the competency of the States, the latter power is in fact subject to the overriding power of the Federal Government, as is shown by the decision in the *Shreveport* case with respect to regulation of railway rates, and the recent legislation of Congress in the field of labor relations on the theory that the power of Congress extends not only to interstate commerce itself but also over intrastate commerce when it "affects" interstate commerce. As far as control of aliens is concerned, the Supreme Court has held that the police power of the States which admittedly exists with respect to aliens as a class distinct from the rest of the population, is lost when the Federal Government has "occupied the field". See *Hines v. Davidowitz*, 312 U.S. 52 (1941).

subject of local "peace and order" would also be an invasion of the "police power" of the States in the strict sense of that term—that is to say, the power of the State executives. This question aroused much heated controversy when Governor John P. Altgeld of Illinois publicly and vigorously protested against the action of President Cleveland in sending an army detachment into Illinois in connection with the famous Pullman strike in 1894. In his official protest Governor Altgeld said:

Sir:—Your answer to my protest involves some startling conclusions and ignores and evades the question at issue—that is that the principle of local self-government is just as fundamental in our institutions as is that of Federal supremacy.

FIRST:—You calmly assume that the executive has the legal right to order Federal troops into any community of the United States, in the first instance, whenever there is the slightest disturbance, and that he can do this without any regard to the question as to whether that community is able to and ready to enforce the law itself, and, inasmuch as the executive is the sole judge of the question as to whether any disturbance exists or not in any part of the country, the assumption means that the executive can send Federal troops into any community in the United States at his pleasure, and keep them as long as he chooses.

If this is the law, then the principle of self-government, either never did exist in this country or else has been destroyed, for no community can be said to possess local self-government, if the executive can, at his pleasure, send military forces to patrol its streets under pretense of enforcing some law.

Nor was this protest limited to Governor Altgeld. Governor Hogg of Texas made a similar protest. And it is significant that President Cleveland did not claim the right to send an army detachment to suppress expected riots, or otherwise protect the State or its functions, but based his action on the claim that the alleged riots interfered with the carrying of the United States mails.

That the problems of the power of Congress to legislate and of the Executive to act are intimately connected is self-evident on constitutional principles. The substantive evil being the use of "force and violence", it follows that whenever Congress has the power to enact *preventive* legislation, the President has the power of *suppression*. *Conversely, if the "force and violence" is of a nature that the President would have no power to suppress if it actually arose, Con-*

gress has no power to legislate for its prevention—since the division of powers is not between the departments of government, but that between the Federal Government and the States.

III. THE RULE AND ITS AMBIT

The Clear and Present Danger Rule was first announced in *Schenck v. United States*, a prosecution during World War I. The defendant Schenck was the General Secretary of the Socialist Party of Pennsylvania, and he was convicted with others, as stated in the Court's opinion, of a conspiracy:

. . . to violate the Espionage Act of June 15, 1917, . . . by causing and attempting to cause insubordination, etc., in the military and naval forces of the United States, and to obstruct the recruiting and enlistment service of the United States, when the United States was at war with the German Empire; to wit, that the defendant wilfully conspired to have printed and circulated to men who had been called and accepted for military service under the Act of May 18, 1917 . . . , a document set forth and alleged to be calculated to cause such insubordination and obstruction.²⁴

The conviction was upheld by the Supreme Court in an opinion by Justice Holmes, in which the Court, after admitting that the circular in question would have been protected by the provisions of the First Amendment in ordinary times, said that the conviction was justified because of the war conditions which brought about the legislation and the conviction. The Court then stated the rule applicable to such situations in the following language:

The question *in every case* is whether the words used are used in such circumstances and are of such a nature as to create a clear and present danger that they will bring about the substantive evils that *Congress has a right to prevent*. It is a question of proximity and degree. When a nation is at war many things that might be said in time of peace are such a hindrance to its effort that their utterance will not be endured so long as men fight, and that no court could regard them as protected by any constitutional right.²⁵ (Emphasis supplied).

24. 249 U.S. 47, 48 (1919).

25. *Id.* at 52. In an earlier portion of his opinion, Holmes used an unfortunate example to illustrate the fact that there is no *absolute* right of freedom of speech, which has led to a lot of nonsense being said on that score. The passage is as follows: "The

The meaning of the rule is clear: the danger involved must be both *clear* and *present*. It is also clear that the rule is all pervasive—it applies to "every case". Indeed, the latter proposition follows from the very nature of the rule. Nevertheless, it has been repeatedly argued by prosecutors, including counsel for the Government in the *Communist* case in their brief in the Court of Appeals, that this rule does not apply to cases where the legislature itself has made certain speech or writing a crime. This contention is clearly untenable. Indeed, when carefully analyzed it is pure nonsense. When stated as broadly as that it would simply abolish the constitutional protection of free speech and free press. If that contention were the law, Congress or a State Legislature could make *any* set of words criminal. Among others, it could make criminal the uttering of the following: (1) "The history of all hitherto existing society is the history of class struggles"—which is the opening sentence of "The Communist Manifesto." (2) "All men are created equal"—which is one of the basic pronouncements of the Declaration of Independence. In some of our southern states, and to many persons in the North, both doctrines are equally "subversive." And yet, no one would think that a legislative declaration to that effect would make the prohibition of the utterance of either verbal formula exempt from condemnation under the First Amendment.

Furthermore, the *existence* of a clear and present danger is a question of fact—a question which in its nature must vary from time to time and place to place, and could not therefore be determined in

most stringent protection of free speech would not protect a man in falsely shouting fire in a theatre, and causing a panic". This has been quoted innumerable times as if the great Justice had meant to say in this passage that sometimes a man may be punished for mere "speech" even though it had no harmful consequences. Actually, the great jurist said nothing of the kind in this passage. What he actually said was the speech coupled with certain consequences ensuing as the result of that speech *would make the speaker responsible for those consequences*. Furthermore, it must be borne in mind that when we speak of free speech or free press we are speaking of the promulgation of doctrine or the conveyance of thought, and not of a mere statement of facts, such as the crying of fire in a theatre. The basic element in the situation referred to by Justice Holmes is, however, falsity of the statement of fact. Clearly, if the speaker had actually seen a fire he would not be made criminally responsible for the panic that ensued by his crying out "fire". Even the Espionage Act made statements injurious to the war effort punishable only when they were false. There is an obvious difference, even in wartime, between false statements of fact—such, for instance, as false reports of defeats—and mere statements of opinion as to the causes and justification of the war or what may be called "peace propaganda".

advance by legislative fiat. All that the legislature can do is to say that when circumstances are such that the utterance does create a clear and present danger, the prohibition should apply and its violation be punished.

The excuse for the Government's contention is certain language used by the majority of the Supreme Court in *Gitlow v. New York*, and repeated by implication in *Whitney v. California*. That an attempt to limit the operation of the rule was made by the majority of the Court in those cases may be admitted. But an examination of the opinion of the Courts in the *Gitlow* case will show that the attempt was very feeble, and that *the decision* was not based on any such distinction, and this applies, of course, also to *Whitney v. California*. These two cases were therefore a poor peg on which to hang the Communist conviction. And it is significant that both the Court of Appeals and the Supreme Court, as will be seen when we come to consider those decisions, disregarded this distinction and attempted to find another peg on which to hang that conviction.

This course became necessary because the Supreme Court had, by a long series of decisions rendered since the *Gitlow* case, rejected the limitation attempted to be placed thereon in that case and gave the rule as wide a scope as could possibly have been intended by Justice Holmes who announced it. In the course of its triumphant progress, the rule has actually been extended from the class of cases in which it was first announced, those of "subversive" utterance, to cases involving contempt of court.²⁶

In contempt cases the question of "present" does not arise, since the case must be pending, otherwise the court does not possess the power to punish for contempt. The only question, therefore, that could arise in such cases, is whether the interference with the court is "clear". The use of the rule in those cases must therefore be taken as an indication of the determination of the Supreme Court to emphasize the importance of the rule and to forestall any possible encroachments upon it.

This was indeed, necessary, since any limitation upon the Clear and Present Danger Rule would undermine the position of the Court as a guardian of the Constitution. If Congress and State legislatures could "determine" questions of fact beyond the power of the courts to re-

26. *Craig v. Harney*, 331 U.S. 367 (1947); *Pennekamp v. Florida*, 328 U.S. 331 (1946); *Bridges v. California*, 314 U.S. 252 (1941).

view, the protection not only of the First Amendment but also of the Fifth and Fourteenth Amendments, particularly the due process clause, would become virtually inoperative. Furthermore, in view of the fact that the Supreme Court, by an act of "self-restraint", has adopted the rule that it will not review a decision coming from a State Court, involving a Federal question, where the case could also have been decided on a sufficient ground of State law, State courts could prevent review by the Supreme Court with the mere *declaration* that the case was decided on purely State law by interpreting the intent of the State Legislature based on a finding of fact by that body. The Supreme Court has therefore long ago established the rule that where an appeal is made to the protection of the United States Constitution, it will not consider itself bound by such declaration, whether legislative or judicial, but will decide for itself the necessary questions of fact and of law. This, the Court said, is necessary if it is to perform its functions under the Constitution. Obviously, the same rule must apply to Congressional declarations, or alleged findings of fact, if the Supreme Court is to remain the guardian of our liberties under the Bill of Rights.

IV. GITLOW V. NEW YORK AND WHITNEY V. CALIFORNIA REVISITED

The confusion which still exists in some quarters as to the meaning of *Gitlow v. New York* and *Whitney v. California* requires a careful analysis of those two cases. Such analysis will show that the confusion which still persists with respect to those two cases is due to the failure to distinguish between the powers of the Federal and State Governments, respectively, with respect to the problem of sedition, plus the failure to distinguish between the supervisory power of the Supreme Court over cases coming from lower Federal courts on the one hand, and those coming from State courts on the other. In this connection we desire to add to what we have already said on the latter subject, that the Supreme Court considers itself bound by the decisions of the State Courts as to the meaning of a State statute or State Constitution.

Gitlow was indicted in January, 1920, for publishing a document adopted by a conference of left-wing Socialists in May, 1919, commonly referred to as the "Left-Wing Manifesto". The indictment was laid under an "anti-anarchist" statute adopted by the State of New

York shortly after the assassination of President McKinley in 1901. The statute reads as follows:

Advocacy of criminal anarchy. Any person who:

1. By word of mouth or writing advocates, advises or teaches the duty, necessity or propriety of overthrowing or overturning organized government by force or violence, or by assassination of the executive head or of any of the executive officials of government, or by any unlawful means . . . is guilty of a felony and punishable by imprisonment for not more than ten years, or by a fine of not more than five thousand dollars, or both.²⁷

Needless to say, Gitlow was not an anarchist and the *Left-Wing Manifesto* did not advocate the overthrow of "organized government". As already stated, the Manifesto was published by members of the Socialist Party. By the time of his indictment, Gitlow had joined the Communist Labor Party, and subsequently he became a member of the Communist Party. The Manifesto, as may be seen from the excerpts quoted by the New York Court of Appeals, far from advocating the abolition of "organized government", specifically advocated the organization of a Socialist or proletarian state. Nor did it specifically advocate the overthrow of the present State by force and violence, but it did advocate the use of the mass strike for that purpose. The Court of Appeals thus criticized the Manifesto:

It will be seen from the above excerpts that this defendant through the manifesto of the Left Wing advocated the destruction of the state and the establishment of the dictatorship of the proletariat. The way in which this is to be accomplished is by the use of the mass strike; the strike workers attempting to usurp the functions of municipal government as in Seattle and Winnipeg.²⁸

The Court then referred to a section of the New York State Penal Law which in its opinion made the advocacy of the mass strike for the purpose of gaining possession of municipal government unlawful. It therefore came to the conclusion that this brought the Manifesto within the wording of the "criminal anarchy" statute which made it

27. N.Y. PENAL LAW §161.

28. *People v. Gitlow*, 234 N.Y. 132, 141, 136 N.E. 317, 320 (1922), *aff'd*, *Gitlow v. New York*, 268 U.S. 652 (1925).

an offense not only to advocate the destruction of government by force and violence, but also to advocate such "destruction" by means of the mass strike. In other words, the New York Court of Appeals construed the statute as if it read that a person was guilty of the crime of criminal anarchy if he advocated the doctrine of the *usurpation* of municipal government, or of any of its functions, or *interference with* such functions, by means of the mass strike. This was, however, drowned in a lot of verbiage about the general revolutionary aims of the Manifesto. Indeed, it is difficult from a reading of this opinion to decide whether the decision was based on the first of the two sentences quoted, or on the second, the Court apparently considering that one bolstered the other. It is this, we believe, that led to the division in the Supreme Court, as will appear from an examination of the decision of that Court.²⁹

When the case came before the Supreme Court, that Court was

29. The confusion as to the meaning of the decision of the New York Court of Appeals becomes more confounded in view of the "concurring" opinion written by Chief Judge Hiscock which spoke in the name of 4 of the 5 judges who concurred in the affirmance of the conviction. (Judges Cardozo and Pound dissented in an opinion by the latter on the obvious ground that Gitlow's offense, whatever it may be, was not "criminal anarchy" within the meaning of the statute under which he was convicted. "Defendant has been convicted for advocating the establishment of a dictatorship of the proletariat and not for advocating criminal anarchy.") It should also be noted that Judge Hiscock is not listed among those who concurred with Judge Crane, whose opinion is so placed as to be the opinion of the Court. We thus have two opinions each concurred in by a majority of the Court, but not the same majority. The difference between these two opinions, therefore, becomes important when we come to consider the action of the Supreme Court.

A comparison of the two opinions clearly shows that the difference between them consists in the fact that the opinion delivered by Judge Crane, notwithstanding all the talk about the revolutionary aims of the authors of the Manifesto, places the *decision* on the fact that it called upon the working class to immediately engage in mass strikes such as those which had occurred in Seattle and Winnipeg—which, as the Manifesto itself states "paralyzed" the municipal governments of those cities. In this connection it is important to point out that the prosecution did not rest on the Manifesto alone, but introduced evidence as to what actually happened in Winnipeg. Judge Crane referred to that evidence in the following language:

The People in this case through Major Parry Ferguson Montague showed what kind of a strike Winnipeg had. He testified that employees in the various departments of activity refused to work. These consisted of the postmen, teamsters, cooks, waiters, clerks, metal workers, garbage collectors, employees in water and electric light supplies, elevator operators, telephone employees.

On the other hand, Chief Judge Hiscock and those who joined in his opinion (which did not include Judge Crane) placed the affirmance of the conviction *on the ultimate aims of the Manifesto*. After quoting liberally passages from the Manifesto showing

confronted with two theories of guilt, each supported by a majority of the New York Court of Appeals, but only a minority of that Court holding that Gitlow was guilty on both of those theories.³⁰

Before discussing the action of the Supreme Court, we must bear in mind another rule of that Court in dealing with cases coming from the State Courts—namely, that where the State Court decision is based on two possible grounds, one of which is repugnant to the Constitution and one of which is not, the Supreme Court will assume that the decision of the State Court was based on the latter ground and the judgment will be affirmed. In this situation the majority of the Supreme Court chose to treat Judge Crane's opinion as the opinion of the Court of Appeals; and although it did not say so expressly, it actually affirmed the conviction on the theory of Judge Crane that the advocacy of the immediate mass strike for the purpose of crippling the functions of municipal government is illegal. Justice Sanford, who delivered the opinion of the majority, by way of "atmosphere" used a lot of language similar to that used by Judge Crane below with respect to the ultimate revolutionary aims of the Manifesto and its authors, and also suggested that the clear and present danger rule did not apply to cases where the State Legislature made the language itself criminal. He did not attempt, however, to square that claim with the provisions of the First Amendment, or to answer the obvious objection that this would make the Supreme Court powerless to guard against an abridgement of the right of free speech and free press in the face of such declaration either by Congress or a State legislature. He did not say so for the obvious reason that it was not called for on the theory of the majority, which he proceeded to expound in language similar to that

that the ultimate aims of the movement on whose behalf the Manifesto was issued was revolution, Judge Hiscock comments:

As we read this manifesto interspersed with sentiments and statements such as we have quoted we feel entirely clear that the jury were justified in rejecting the view that it was a mere *academic* and harmless discussion of the advantages of communism and advanced socialism and a mere Utopian portrayal of the blessings which would flow from the establishment of those conditions. We think on the other hand that the jury were entirely justified in regarding it as a justification and *advocacy of action* by one class which would destroy the rights of all other classes and overthrow the state itself by use of revolutionary mass strikes.

30. Chief Judge Hiscock's failure to join in Judge Crane's opinion clearly indicated that he joined Judges Pound and Cardozo in disapproving the distorted reading of the statutes adopted by Judge Crane and criticized by the dissenting minority.

used by Judge Crane. He, too, pointed to the language of the Manifesto with respect to what actually occurred in Winnipeg and Seattle. This clearly ruled out any appeal to the clear and present danger rule. What actually happened in Winnipeg and Seattle could clearly happen in New York; *and that settled the right of the State of New York to protect itself against the impending danger.*

As already pointed out, the Supreme Court is bound by the interpretation of the State Court as to any State statute. The New York Court of Appeals read the statute as if it made criminal the use of the mass strike for the purpose of usurping, attempting to usurp, or interfering with, any function of the municipal government. That the temper of the working class was such as to present an immediate danger of such occurrence was asserted by the Manifesto and proven by what had actually happened in Winnipeg and Seattle. The New York Legislature was clearly competent to provide against such a situation. The rationale of the decision of the Supreme Court is contained in the following sentence of the majority opinion:

*... the case is to be considered "in the light of the principle that the State is primarily the judge of regulations required in the interest of public safety and welfare;" and that its police "statutes may only be declared unconstitutional where they are arbitrary or unreasonable attempts to exercise authority vested in the State in the public interest".*³¹ (Emphasis supplied).

The minority of the Court, on the other hand, treated the decision of the New York Court of Appeals as based on Chief Judge Hiscock's opinion which clearly called for the application of the clear and present danger rule. Applying that rule to the ultimate revolutionary aims of the Manifesto and its authors, the minority held the conviction contrary to the clear and present danger rule and urged a reversal.

When viewed as a conviction for the advocacy of ultimate revolution, the case was clearly on a different plane than when viewed as an incitement to interference with municipal functions, or breaches of the peace; and what happened in Seattle or Winnipeg was clearly of no importance. Obviously, one cannot conjure up a clear and present danger of a revolutionary overthrow, or attempted overthrow, of the Government of the State of New York or of the United States

31. *Gitlow v. New York*, 268 U.S. 652, 668 (1925).

out of a strike in two cities, one in the United States and one in Canada, which temporarily interfered with some of the functions of their municipal governments. The minority of the Court may have considered of some significance that the evidence of *what actually happened*, rather than what was said about it in the Manifesto published in New York City, was the evidence of *what happened* in Canada rather than in the United States. And it *must* have considered it significant that the Manifesto itself specifically stated that "this is not a moment of revolution". Justices Holmes and Brandeis, speaking through the former, therefore said:

The general principle of free speech, it seems to me, must be taken to be included in the Fourteenth Amendment, in view of the scope that has been given to the word "liberty" as there used, *although perhaps it may be accepted with a somewhat larger latitude of interpretation than is allowed to Congress by the sweeping language that governs, or ought to govern, the laws of the United States*. If I am right, then I think that the criterion sanctioned by the full court in *Schenck v. United States*, 279 U.S. 47, 52, applies.³² (Emphasis supplied).

And they proceed to show why the evidence fell short of the clear and present danger rule announced in the *Schenck* case, saying:

If what I think the correct test is applied, it is manifest that there was no present danger of an attempt to overthrow the government by force on the part of the admittedly small minority who shared the defendant's views. It is said that this manifesto was more than a theory, that it was an incitement. *Every idea is an incitement*. It offers itself for belief and if believed it is acted on unless some other belief outweighs it or some failure of energy stifles the movement at its birth. The only difference between the expression of an opinion and an incitement in the narrower sense is the speaker's enthusiasm for the result. Eloquence may set fire to reason. *But whatever may be thought of the redundant discourse before us it had no chance of starting a present conflagration. If in the long run the beliefs expressed in proletarian dictatorship are destined to be accepted by the dominant forces of the community, the only meaning of free speech is that they should be given their chance and have their way*.³³ (Emphasis supplied).

32. *Id.* at 672.

33. *Id.* at 673.

*Whitney v. California*³⁴ was a variation of the *Gitlow* theme, and was decided on the authority of that case. Charlotte Anita Whitney, like Benjamin Gitlow, had been a member of the Socialist Party, and had become a member of the Communist Labor Party when that was organized in the Fall of 1919. Gitlow helped organize the National organization in September of that year, and Miss Whitney helped to organize the California branch of that party in November. The program of the Communist Labor Party was a restatement of the principles of the Left-Wing Manifesto, and largely a paraphrase of its language, including even the reference to the strikes in Seattle and Winnipeg and their import. It also contained a reference to the I.W.W. whose class struggle activities were commended. The latter circumstances became important in the *Whitney* case because of the nature of the statute under which Miss Whitney was indicted.

Unlike Gitlow, Miss Whitney was not indicted as a "criminal anarchist" but as a "criminal syndicalist", under a criminal syndicalism statute adopted by the Legislature of California for the specific purpose of dealing with the activities of the I.W.W. The statute, in one of its sections, declared that "at the present time large numbers of persons are going from place to place in this state advocating, teaching and practicing criminal syndicalism."³⁵ And there was evidence, according to Justice Brandeis in his concurring opinion, tending to "establish the existence of a conspiracy, on the part of members of the International Workers of the World, to commit present serious crimes; and likewise to show that such a conspiracy would be furthered by the activity of the society of which Miss Whitney was a member."³⁶ The offense of "criminal syndicalism" was defined by the statute as follows:

The term "criminal syndicalism" as used in this act is hereby defined as any doctrine or precept advocating, teaching or aiding and abetting the commission of crime, sabotage (which word is hereby defined as meaning, wilful and malicious physical damage or injury to physical property), or unlawful acts of force and violence or unlawful methods of terrorism as a means of accomplishing a

34. *People v. Whitney*, 57 Cal. App. 449, 207 Pac. 698, *hearing denied*, 57 Cal. App. 453, 207 Pac. 698 (Sup. Ct. 1922), *appeal dismissed*, *Whitney v. California*, 269 U.S. 530, *rehearing granted*, *id.* at 538 (1925), *aff'd*, 274 U.S. 357 (1927).

35. CAL. GEN. LAWS act 8428, § 4 (1944).

36. *Whitney v. California*, 274 U.S. 357, 379 (1927).

change in industrial ownership or control, or effecting any political change.³⁷

The most important thing to be noted about the *Whitney* case is that the defendant admitted that what she did was a violation of the statute. She therefore rested her defense on the theory that the statute as a whole was unconstitutional on its face as an abridgement of free speech, free press and free assembly. *This led to a trial strategy which eliminated the question of the applicability of the clear and present danger rule.*

The opinion of the majority, again delivered by Justice Sanford, was therefore in substance a summary of his opinion in the *Gitlow* case, which was held to rule the *Whitney* case. The elimination of the clear and present danger rule also led to a concurrence in the judgment by Justices Holmes and Brandeis. But these two Justices were careful not only to restate the Rule, but to make it clear that it applied not only to cases involving ultimate revolutionary aims, such as the overthrow of the "capitalist system" or of the Government of the United States or of a State of the Union, by force and violence, but to any abridgement of the rights guaranteed by the First Amendment by any government because of an alleged danger to its "peace and safety"—which was the *declared purpose* of the California statute. In a concurring opinion written on behalf of himself and Justice Holmes, Justice Brandeis said:

Whether, in 1919, *when Miss Whitney did the things complained of, there was in California* such clear and present danger of serious evil, might have been made the important issue in the case. She might have required that the issue be determined either by the court or the jury. She claimed below that the statute as applied to her violated the Federal Constitution; but she did not claim that it was void because there was no clear and present danger of serious evil, nor did she request that the existence of these conditions of a valid measure thus restricting the rights of free speech and assembly be passed upon by the court or a jury.³⁸ (Emphasis supplied).

In addition, the two dissenters in the *Gitlow* case took this occasion to make a more elaborate defense of the right of free speech, free press and free assembly, than had been done by Justice Holmes in the *Gitlow* case.

37. CAL. GEN. LAWS act 8428, § 1 (1944).

38. *Whitney v. California*, 274 U.S. 357, 379 (1927).

V. THE PERIOD BETWEEN THE TWO GREAT HYSTERIAS

Gitlow v. New York was decided June 8, 1925, and *Whitney v. California* was decided May 16, 1927. They were, however, echoes of the First Great Hysteria which commenced with our entry into World War I, gathered momentum after the cessation of hostilities on Armistice Day, and subsided by 1922. Both Gitlow and Miss Whitney were indicted and tried while the First Great Hysteria was at its height. But the cases took a long time in getting to the Supreme Court, and the Supreme Court took a long time in deciding them, due probably to the fact that such prosecutions in peacetime were a novelty in this country, there having been none since the prosecutions under the Sedition Laws of 1798.³⁹

The period between the two world wars has been frequently referred to as the twenty years of Uneasy Truce. Similarly, there was a twenty year period of uneasy truce between the Palmer raids and the Smith Act, which initiated the Second Great Hysteria. But as in the case of the First Great Hysteria, the Supreme Court lagged somewhat behind in its decisions, so that for a few years decisions of the Supreme Court were not affected by the new hysteria. There had been, however, local hysterias during this period, particularly on the Pacific Coast, which were reflected mainly in decisions of the State Courts. In the lower Federal Courts this state of uneasy truce was reflected in conflicting decisions in deportation cases directed against communists—some of the courts holding that membership in the Communist Party was proof of a belief in the overthrow of the United States Government by force and violence, while others held to the contrary. A related question, namely, whether membership in the Communist Party was proof of lack of "attachment to the principles of the United States Constitution", came up in a series of denaturalization cases based on the allegation that the defendants were members of the Communist Party at the time of naturalization. Two cases, each involving one of these questions, reached the Supreme Court after the enactment of the Smith Act in 1940, but before the

39. The Gitlow case was tried in February, 1920. It was first argued in the Supreme Court on April 12, 1923. It was reargued November 23, 1923, and decided June 8, 1925. The Whitney trial also took place in January, 1920. The first attempt to have the Supreme Court review the decision failed, the writ of error granted by the State Court being dismissed by the Supreme Court (see, 269 U.S. 530). The case was first argued in the Supreme Court on October 6, 1925. Reargued March 18, 1926. Decided May 16, 1927.

new great hysteria had gotten into full swing. These cases, *Schneiderman v. United States* and *Bridges v. Wixon*, will be discussed further below.

In the meantime a series of cases from the State Courts reached the Supreme Court, in which the clear and present danger rule was applied to various situations, and became firmly rooted as part of our constitutional law, seemingly placing it beyond the likelihood of attack. Most of these cases dealt with the activities of the Jehovah's Witnesses, and did not, therefore, involve questions of seditious doctrine. One of the cases, however, *Taylor v. Mississippi*,⁴⁰ did involve that question. Taylor was indicted and convicted under a Mississippi statute of 1942, the purpose of which, according to its title, was to "secure the peace and safety of the United States and of the State of Mississippi during war and to prohibit acts detrimental to public peace and safety." The section under which the indictment was laid provided, among other things:

That any person who individually, or as a member of any organization, association, or otherwise, shall intentionally preach, teach, or disseminate any teachings, creed, theory, or set of alleged principles, . . . designed and calculated to encourage violence, sabotage, or disloyalty to the government of the United States, or the State of Mississippi . . . or which reasonably tends to create an attitude of stubborn refusal to salute, honor or respect the flag or government of the United States, or of the state of Mississippi, shall be guilty of a felony and punished by imprisonment in the state penitentiary until treaty of peace be declared by the United States but such imprisonment shall not exceed ten years.⁴¹

The evidence upon which the conviction was based was that:

Taylor, in the course of interviews with several women, the sons of two of whom had been killed in battle overseas, stated that it was wrong for our President to send our boys across in uniform to fight our enemies; that it was wrong to fight our enemies; that these boys were being shot down for no purpose at all; that the two women's sons may have thought that they were doing the right thing to fight our enemies, but it was wrong; that Hitler would rule but would not have to come here to rule; that the quicker people here quit

40. 319 U.S. 583 (1943).

41. C. 178, § 1, GEN. LAWS OF MISS. at 211 (1942).

bowing down and worshiping and saluting our flag and Government the sooner we would have peace.⁴²

The evidence shows that Taylor also distributed books and pamphlets which, on religious grounds, advocated refusal to participate in the war and salute the flag. Because the statute was intended to be a war measure, the trial court sentenced Taylor to prison during the *duration* of the war but not to exceed ten years.

In reversing the conviction the Supreme Court, in a unanimous decision delivered by Justice Roberts, said:

As applied to the appellants it punishes them although what they communicated is not claimed or shown to have been done with an evil or sinister purpose, to have advocated or incited subversive action against the nation or state, or to have threatened *any clear and present* danger to our institutions or our government. What these appellants communicated were their beliefs and opinions concerning domestic measures and trends in national and world affairs.⁴³ (Emphasis supplied).

A flag case of a different character was that of *Stromberg v. California*, decided May 18, 1931. Yetta Stromberg, aged 19, was a member of the Young Communist League and in charge of a camp for children. She was indicted under a California statute which provided:

Any person who displays a red flag, banner or badge or any flag, badge, banner, or device of any color or form whatever in any public place or in any meeting place or public assembly, or from or on any house, building or window as a sign, symbol or emblem of opposition to organized government or as an invitation or stimulus to anarchistic action or as an aid to propaganda that is of a seditious character is guilty of a felony.⁴⁴

The proof was that under her direction “the children were taught class consciousness, the solidarity of the workers, and the theory that the workers of the world are of one blood and brothers all”, and that she supervised and directed the children in raising a red flag, “a camp-made reproduction of the flag of Soviet Russia, which was also the

42. *Taylor v. Mississippi*, 319 U.S. 583, 588 (1943).

43. *Id.* at 589, 590.

44. *Stromberg v. California*, 283 U.S. 359, 361 (1931).

flag of the Communist Party in the United States." There was also proof that "In connection with the flag-raising, there was a ritual at which the children stood at salute and recited a pledge of allegiance 'to the worker's red flag, and to the cause for which it stands; one aim throughout our lives, freedom for the working class'."⁴⁵

This conviction was reversed in an opinion by Chief Justice Hughes, on the ground that a statute framed in such general terms was obnoxious to the provisions of the First and Fourteenth Amendments.⁴⁶

This case did not involve the question of the clear and present danger rule, since the statute in question was held unconstitutional on its face. It is discussed here as well as the next case merely in order to show a trend of decisions in the Supreme Court, and the difference between the decisions of the Supreme Court during that period and those of the State Courts on the Pacific Coast, which seems to have been in considerable industrial turmoil at the time.

In *De Jonge v. Oregon*,⁴⁷ decided January 4, 1937, petitioner was convicted of violating the "Criminal Syndicalism" statute of that State because he was a speaker at and otherwise actively participated in the conduct of a meeting called by the Communist Party—the latter being charged with advocating doctrines prohibited by the Criminal Syndicalism Act, criminal syndicalism being defined as "the doctrine which advocates crime, physical violence, sabotage or any unlawful acts or methods as a means of accomplishing or effecting industrial or political change or revolution."⁴⁸ The State Court held that the mere fact that the meeting was called by and held under the auspices of the Communist Party was sufficient to sustain the conviction irrespective of what was done at the meeting itself. This holding was

45. *Id.* at 262.

46. This case involved a complicated question based upon the construction of the State Court that the section defined three separate crimes, the other two involving more than the mere raising of the flag, and the additional question as to whether, with respect to the charge based on the raising of the flag as a "symbol of opposition" to the government, it had been properly raised below. The Court, holding that the question had been properly raised below, reversed the case without passing on the other two interpretations of the statute, since the verdict had been a general one. Justice McReynolds dissented on the ground that the Federal question had not been properly raised.

47. 299 U.S. 353 (1937).

48. ORE. CODE §§ 14-3110-3112 (1930), as amended by Ore. Laws 1933, c. 459, § 14-3110 (repealed by Ore. Laws 1937, c. 362, p. 535, § 2).

reversed as contravening the provisions of the First Amendment, the Court in a unanimous opinion delivered by Chief Justice Hughes assimilating the right of assembly to that of free speech and free press.

The case of *Herndon v. Lowry*,⁴⁹ decided April 26, 1937, bears directly upon the meaning of the clear and present danger rule, and goes far to confirm and clarify it. Herndon was an organizer for the Communist Party, and was sent from Kentucky to Georgia in order to organize there a branch of the Communist Party among Negroes. This was at the time when the Communist Party advocated the formation of the so-called Black Belt Republic; and Herndon had in his possession, concededly for the purpose of distribution, Communist Party literature which unquestionably advocated Negro insurrection for the purpose of organizing a Black Republic. He did not, however, advocate immediate insurrection; and there was no evidence that in calling the only organization meeting which Herndon held in Georgia he intended to advocate immediate insurrection, or any insurrection, except in so far as that might be inferred from his intention to distribute the literature in question. The State Supreme Court, in sustaining Herndon's conviction for incitement to insurrection, held that it was not necessary for the prosecution to prove that there was a clear and present danger that insurrection would follow from the defendant's advocacy thereof, or that he should have intended that it should happen either immediately or at any *given* time, but that it was sufficient "if he intended that it should happen at any time within which he might reasonably expect his influence to continue to be directly operative in causing such action by those whom he sought to induce."⁵⁰

The Supreme Court reversed the conviction, reaffirming the clear and present danger rule and rejecting its attempted limitation. In discussing the clear and present danger rule, the Court said, through Mr. Justice Roberts:

The appellant, while admitting that the people may protect themselves against abuses of the freedom of speech safeguarded by the Fourteenth Amendment by prohibiting incitement to violence and crime, insists that legislative regulation may not go beyond measures forefending against "clear and present danger" of the use of force

49. 301 U.S. 242 (1937).

50. *Id.* at 255.

against the state. For this position he relies upon our decisions under the Federal Espionage Acts and cognate state legislation. . . . We recognized, however, that words may be spoken or written for various purposes and that wilful and intentional interference with the described operations of the government might be inferred from the time, place, and circumstances of the act. "The question in every case is whether the words used are used in such circumstances and are of such a nature as to create a clear and present danger that they will bring about the substantive evils that Congress has a right to prevent. It is a question of proximity and degree."

The legislation under review differs radically from the Espionage Acts in that it does not deal with a wilful attempt to obstruct *a described and defined activity of the government*.

The State, on the other hand, insists that our decisions uphold state statutes making criminal utterances which have a "dangerous tendency" towards the subversion of government. It relies particularly upon *Gitlow v. New York*, 268 U.S. 652. There, however, we dealt with a statute which, quite unlike § 56 of the Georgia Criminal Code, denounced as criminal certain acts carefully and adequately described. . . .⁵¹

It is evident that the decision sustaining the New York statute furnishes no warrant for the appellee's contention that under a law *general in its description of the mischief to be remedied and equally general in respect of the intent of the actor, the standard of guilt may be made the "dangerous tendency" of his words*.

The power of a state to abridge freedom of speech and of assembly is the exception rather than the rule and the penalizing even of utterances of a defined character must find its justification in a reasonable apprehension of danger to organized government. *The judgment of the legislature is not unfettered*.⁵² (Emphasis supplied).

It then rejected the doctrine of the "reasonable expectation", saying:

Within what time might one reasonably expect that an attempted organization of the Communist Party in the United States would result in violent action by that party?⁵³

So vague and indeterminate are the boundaries thus set to the

51. *Id.* at 255, 256.

52. *Id.* at 258.

53. *Id.* at 263.

freedom of speech and assembly that the law necessarily violates the guaranties of liberty embodied in the Fourteenth Amendment.⁵⁴

Schneiderman v. United States,⁵⁵ decided June 21, 1943, and *Bridges v. Wixon*,⁵⁶ decided June 18, 1945, both arose in California. Schneiderman was a prominent member of the Communist Party, a member of its National Committee, and Secretary of the Party in California. Harry Bridges has been the "stormy petrel" of California labor politics for many years, and the center of a bitter struggle not only in California but in Washington. With the specific legal problems involved in these cases we are not concerned here. We shall therefore, only refer to such facts and such portions of the opinions delivered in the Supreme Court as bear on our problem.

Neither case involved the clear and present danger rule directly, since these were not ordinary criminal prosecutions. Also, concededly, admission to the United States and continued residence therein are privileges to which the United States Government may attach conditions—at least when they are not contrary to the provisions of the First Amendment. Citizenship is also a privilege to which the United States Government concededly may attach conditions, with the same reservation. But a holding that membership in the Communist Party is not proof of a belief in the overthrow of the United States Government by force and violence—the affirmation of which proposition is the basis of deportation proceedings—is equivalent to a holding that the doctrines of the Communist Party present no danger whatever of the "substantive evil" sought to be guarded against by statutes against sedition or subversion. *A fortiori* is this true if the holding is to the effect that membership in the Communist Party is not "clear" proof of lack of "attachment" to the principles of the United States Constitution. Such was, in effect, the holding of the Court in the *Schneiderman* case. In delivering the opinion of the Court, Justice Murphy said:

For some time the question whether advocacy of governmental overthrow by force and violence is a principle of the Communist Party of the United States has perplexed courts, administrators, legislators, and students. On varying records in deportation proceedings some courts have held that administrative findings that the

54. *Id.* at 264.

55. 320 U.S. 118 (1943).

56. 326 U.S. 135 (1945).

Party did so advocate was not so wanting in evidential support as to amount to a denial of due process, others have held to the contrary on different records, and some seem to have taken the position that they will judicially notice that force and violence is a Party principle. This Court has never passed upon the question whether the Party does so advocate, and it is unnecessary for us to do so now.

With commendable candor the Government admits the presence of sharply conflicting views on the issue of force and violence as a Party principle, and it also concedes that "some communist literature in respect of force and violence is *susceptible of an interpretation more rhetorical than literal*." It insists, however, that excerpts from the documents on which it particularly relies, are enough to show that the trial court's finding that the Communist Party advocated violent overthrow of the Government was not "clearly erroneous," and hence cannot be set aside. As previously pointed out, the trial court's findings do not indicate the bases for its conclusions, but the documents published prior to 1927 stressed by the Government, with the pertinent excerpts noted in the margin, are: The Communist Manifesto of Marx and Engels; The State and Revolution by Lenin; The Statutes; Theses and Conditions of Admission to the Communist International; and The Theory and Practice of Leninism, written by Stalin. . . .

The *bombastic excerpts* set forth in notes 35 to 38 inclusive, upon which the Government particularly relies, lend considerable support to the charge. We do not say that a reasonable man could not possibly have found, as the district court did, that the Communist Party in 1927 actively urged the overthrow of the Government by force and violence. But that is not the issue here. We are not concerned with the question whether a reasonable man might so conclude, nor with the narrow issue whether administrative findings to that effect are so lacking in evidentiary support as to amount to a denial of due process. As pointed out before, this as (sic) a denaturalization proceeding in which, if the Government is entitled to attack a finding of attachment as we have assumed, the burden rests upon it to prove the alleged lack of attachment by "clear, unequivocal and convincing" evidence. That burden has not been carried. The Government has not proved that petitioner's beliefs on the subject of force and violence were such that he was not attached to the Constitution in 1927.⁵⁷ (Emphasis supplied).

57. *Schneiderman v. United States*, 320 U.S. 118, 147-154 (1943).

The Court therefore reversed a judgment of denaturalization entered against Schneiderman by the Northern District of California and affirmed by the Ninth Circuit Court of Appeals.

The *Bridges* case was decided by the Supreme Court on questions of procedure and evidence. For that reason neither the opinion delivered on behalf of the majority of the Court reversing the judgments of the courts below sustaining the order of deportation nor the opinion of the minority which voted for affirmance of the judgments below are of interest here. However, the concurring opinion of Justice Murphy is of interest not only because of its clarion call on behalf of the freedoms guaranteed by the First Amendment and the general preservation of civil rights under the Constitution, but because of his assertion that the clear and present danger rule applies even to deportation proceedings, notwithstanding the fact that admission to the United States is a privilege which could be denied with or without reason, with the single limitation noted above. In his opinion, Justice Murphy said:

The record in this case will stand forever as a monument to man's intolerance of man. Seldom if ever in the history of this nation has there been such a concentrated and relentless crusade to deport an individual because he dared to exercise the freedom that belongs to him as a human being and that is guaranteed to him by the Constitution.⁵⁸

But the Constitution has been more than a silent, anemic witness to this proceeding. It has not stood idly by while one of its subjects is being excommunicated from this nation without the slightest proof that *his presence constitutes a clear and present danger to the public welfare*.⁵⁹ (Emphasis supplied).

VI. THE NEW HYSTERIA,—LOOKING BACKWARD

Legislatively the new hysteria commenced with the investigations of the Dies Committee and the enactment of the so-called Smith Act. The latter is a dragnet statute which contains all kinds of matters, including the special enactment against Harry Bridges which called forth Justice Murphy's denunciation quoted above.

Although the provisions with which we are here concerned—those directed against the "teaching" and "advocacy" of the overthrow of

58. *Bridges v. Wixon*, 326 U.S. 135, 157 (1945).

59. *Id.* at 159.

the Government of the United States by force and violence—have been on the statute book since June 1940, there was only one prosecution thereunder prior to the trial of the Communist Eleven—that of the Minneapolis Trotskyites. That trial took place in the Fall of 1941. Conviction was affirmed by the Circuit Court of Appeals for the Eighth Circuit on September 20, 1943, and certiorari was denied by the Supreme Court on November 22, 1943.⁶⁰ The decision by the Court of Appeals and the denial of certiorari by the Supreme Court need not detain us, since there was sufficient evidence in the case that the defendants had conspired not only to “teach” and “advocate” the overthrow of the Government by force and violence, but that they had also conspired to subvert the armed forces from their allegiance by speech and writing—the indictment charging both offenses. However, the opinion of the Court of Appeals, upon which both the prosecution and the trial judge in the trial of the Communist Eleven leaned heavily, deserves special attention on two counts: first, because of the careful statement of the rule that a statute which seeks to limit the right of free speech and free press in peacetime, even where that is intended and has a tendency to subvert the armed forces, can only be sustained where there is a reasonable expectation of the substantive evil; and, second, the attempt to revert back to the *Gitlow* case for the distinction there suggested by the majority, discussed by us above. As to the first, the court was undoubtedly right. As to the second, it was clearly wrong.

In holding that those provisions of the Smith Act which dealt with the subversion of the armed forces were not unconstitutional, the Court said:

... there was a situation in 1940 which impressed Congress with the need for this Act. That situation, known to all, was the existence of war in Europe; the apprehension that this country might be drawn into war; the knowledge of the effective use of “fifth column” activities by countries which might be our enemies; and the apprehension that such activities were being or might be used in this country. In stating the purposes of the Bill, it was said in the House: “The officers testified before our committee that they were loath to ask for this provision in peacetime but that conditions had become worse, that propagandists were now gaining a foothold to some extent among the enlisted men of our Army and Navy, and

60. *Dunne v. United States*, 138 F.2d 137, 141 (8th Cir.), cert. denied, 320 U.S. 790 (1943).

that but for the high character and splendid loyalty that has always obtained among the rank and file of our men they would have had to ask for the enactment of this bill much sooner. So, then, title I interdicts the exertion of subversive influences with the intent to undermine the loyalty, morale, or discipline of our fighting men."

Thus, while this Act is applicable to peace as well as war conditions, it was enacted on the brink of war and to correct *existing* dangers.^{60a} (Emphasis supplied).

It should also be noted that in another portion of the opinion the Court held that the statute is only applicable to situations where the words used are *capable* of producing the substantive evil. In this connection, the Court said:

Another consideration is that words used must be capable of bringing about the forbidden result, since one cannot be found guilty "for advocacy of any of his opinions unless the words used had as their natural tendency and reasonably probable effect to obstruct the recruiting service, etc. [here create insubordination, etc.] and unless the defendant had the specific intent to do so in his mind". (Citing the *Debs* and *Schenck* cases.)⁶¹

Standing alone the last passage could be construed as a reaffirmation of the clear and present danger rule as laid down in the *Schenck* case and repeatedly reaffirmed by the Supreme Court in later cases. But this was followed by a section dealing exclusively with "teaching" and "advocacy" of the overthrow of government by force and violence in which the Court sought to revive the distinction suggested by the majority in the *Gitlow* case, saying:

While the doctrine of the *Schenck* case "has afforded practical guidance in a great variety of cases in which the scope of constitutional protections of freedom of expression was in issue" (*Bridges v. State of California*, 314 U.S. 252, 262 . . .), yet it is by no means of universal application. *Gitlow v. People of State of New York*, 268 U.S. 652 . . . , definitely determines that the *Schenck* case doctrine is not applicable in situations where the legislative body has, by statute, determined that "utterances of a certain kind involve such danger of substantive evil that they may be punished" The distinction between such cases and those to which the *Schenck* case

60a. *Id.* at 141.

61. *Id.* at 142.

doctrine is applicable is clearly stated in the *Gitlow* opinion at pages 670 and 671 of 268 U.S., This distinction has not been departed from nor weakened by any subsequent holding of the Supreme Court but, to the contrary, has been recognized and applied.⁶²

In support of this assertion the Court cites *Whitney v. California*,⁶³ *Stromberg v. California*,⁶⁴ *Herndon v. Lowry*,⁶⁵ and *Cantwell v. Connecticut*.⁶⁶

How broken a reed the *Gitlow* case is to lean upon for sustaining this contention is shown by the fact that outside of *Whitney v. California* (in which the clear and present danger rule did not arise because no request for the application of the rule was made), the Court did not cite, as indeed it could not, a single case in which *Gitlow* had been cited by the Supreme Court as authority for sustaining a conviction. The three other cases relied upon by the Court were cases in which the Supreme Court *reversed* convictions obtained in state courts and *rejected* the plea of counsel for the State that the *Gitlow* case was authority for sustaining the conviction.

In the *Stromberg* case the Court did indeed cite the *Gitlow* case, as authority for *reversal*—counsel for the appellant having relied on that case as authority for their contention that the statute involved was unconstitutional *on its face*. *The Supreme Court so held*, thus clearly eliminating the question of the applicability of the clear and present danger rule.

In the other two cases the *Gitlow* case was cited in order to *distinguish* it. In “distinguishing” a case the Supreme Court actually does what we have done in the examination of the *Gitlow* case—it attempts to show that the case is no authority for the proposition advanced in the case at bar. Such a distinguishment clearly does not indicate any approval of the decision; and particularly does it not indicate approval of an abstract proposition which was not *necessary* to the decision of the case. Indeed, in distinguishing the *Gitlow* case in the *Herndon* case, Justice Roberts, speaking for the Court, limits its meaning exactly in the manner as we have limited it here.

And the language of the Supreme Court in the latest decision from

62. *Id.* at 145.

63. 274 U.S. 357 (1927).

64. 283 U.S. 359 (1931).

65. 301 U.S. 242 (1937).

66. 310 U.S. 296 (1940).

that Court cited by the Court of Appeals in the *Dunne* case, *Cantwell v. Connecticut*, at the place indicated, is especially significant. The passage in question reads:

The state of Connecticut has an obvious interest in the preservation and protection of peace and good order within her borders. We must determine whether the alleged protection of the State's interest, means to which end would, in the absence of limitation by the Federal Constitution, lie wholly within the State's discretion, has been pressed, in this instance, to a point where it has come into fatal collision with the overriding interest protected by the federal compact.

Conviction on the fifth count was not pursuant to a statute evincing a legislative judgment that street discussion of religious affairs, because of its tendency to provoke disorder, should be regulated, or a judgment that the playing of a phonograph on the streets should in the interest of comfort or privacy be limited or prevented. Violation of an Act exhibiting such a legislative judgment *and narrowly drawn to prevent the supposed evil*, would pose a question differing from that we must here answer. Such a declaration of the State's policy would weigh heavily in any challenge of the law as infringing constitutional limitations.⁶⁷ (Emphasis supplied).

Two things are clear from this language used by Justice Roberts speaking for a unanimous Supreme Court: first, that in order that the legislative determination of danger that a substantive evil which the State has a right to prevent might arise may come into play at all, the statute must be "narrowly drawn" so as to apply only to that particular evil, which in its nature must be specific, such as the street discussion of religious subjects which might result in a street brawl, or the playing of a phonograph in the street which might disturb the comfort of its residents. Second, and this is decisive, *in no event is such a legislative determination conclusive upon the courts*. It may "weigh heavily" with the Court, but the exact weight which would be given to it would depend upon the situation in hand: *the extent of the infringement of the constitutional guaranties*, and the facts lying behind the legislative determination.

67. *Id.* at 307, 308.

VII. THE CASE OF THE COMMUNIST ELEVEN—THE THEORY OF THE PROSECUTION

The indictment in this case⁶⁸ charges that the defendants

from on or about April 1, 1945, . . . did conspire with each other, . . . to organize as the Communist Party of the United States of America a society, group, and assembly of persons who teach and advocate the overthrow and destruction of the Government of the United States by force and violence, and knowingly and wilfully to advocate and teach the duty and necessity of overthrowing and destroying the Government of the United States by force and violence.⁶⁹

The indictment then proceeds to specify various steps for the carrying out of this conspiracy. These consisted in dissolving the Communist Political Association and the organization of the Communist Party of America in its place.

The theory of the prosecution, which it is claimed was sustained by documentary as well as oral evidence, is that for sometime prior to 1935 there existed in the United States a Communist Party which was part of the Third or Communist International which followed the revolutionary doctrines of Marxism-Leninism, which doctrines allegedly taught the use of force and violence in the overthrow of the capitalist system and/or capitalist governments, including that of the United States. That in or about 1935 that policy of the Communist International was changed to what was known as the Popular Front, involving the peaceful cooperation between the Soviet Union and the capitalist countries, and between Communist Parties and non-Communist elements in each country, in the fight against Fascism. In the United States the exponent of this Popular Front policy was Earl Browder; and under his leadership, this policy finally resulted, in 1944, in the dissolution of the Communist Party of the United States and its replacement by the Communist Political Association. That sometime prior to April 1, 1945, the Comintern, or its successor, the Cominform, under the direction or leadership of the Communist Party of the Soviet Union, dropped its Popular Front policy and reverted to the Marxist-Leninist policy which it had pursued prior to 1935. That in pursuance of this change of policy on the part of the Cominform,

68. *Dennis v. United States*, 341 U.S. 494 (1951).

69. *N.Y. Times*, Oct. 14, 1949, p. 14, col. 1, 2.

the defendants, as leaders of the Communists in this country, repudiated the Browder "collaborationist" policy, caused the dissolution of the Communist Political Association, and organized the new Communist Party of America for the purposes of teaching the Marxist-Leninist doctrine, which the Party proceeded to do in various schools conducted by it.

The character of Marxism-Leninism, which was supposed to have been the basis of the policy of the Communist Party of the United States before the Browder "deviation," was proven by the introduction of various books and pamphlets, the most important of which, according to counsel for the prosecution in their brief in the Court of Appeals, were: *The Communist Manifesto*, by Karl Marx and Frederick Engels, published in 1848; *The State and Revolution*, by Lenin, published in 1917; *Foundations of Leninism*, by Joseph Stalin, lectures delivered in 1924; and the *Program of the Communist International*, adopted in 1928. The Browder deviation and policy are thus summarized in the Government's brief:

Duclos pointed out that the class peace program of Browder was a notorious revision of Marxism-Leninism "expressed in the concept of a long-term class peace in the United States, *of the possibility of the suppression of the class struggle in the post-war period and of establishment of harmony between labor and capital.*"⁷⁰ (Emphasis supplied).

The character of the reconstituted Communist Party was proven by various resolutions adopted by the Party, an outline of lessons taught in its schools, based on the four basic documents just referred to, and the oral testimony of various witnesses. The latter is, however, unimportant, as the Government's brief in the Court of Appeals (the only Court in which the facts were considered) expressly states that the oral testimony was merely corroborative of the printed material, and that the Government's case can therefore be rested on those alone. The purpose of the oral testimony was merely to show that the reconstitution of the Communist Party was a "return home" to the policy which prevailed before the period of the Popular Front.

In giving their view of the meaning of the Browder policy, and the change which occurred in 1945, counsel for the Government said:

70. Brief for Appellees, p. 17, *Dennis v. United States*, 183 F.2d 201 (2d Cir. 1950).

Without detailing again the evidence set forth at length in the Statement of Facts, it is plain that the jury had before it evidence which showed that:

a. The Communist Political Association *which had been organized to prevent "the outbreak of great class struggles within the Nation"* was abandoned. *Its efforts to shed the outward manifestations of a Leninist organization, the rejection of the concept of class war, and the policy of unity between capital and labor in the national interest* were rejected as a notorious revision of Marxism-Leninism.

. . . .

b. *The Communist Party of the United States was reestablished in July 1945, for the avowed purpose of establishing a dictatorship of the proletariat in the United States in conformity with the doctrines of Marxism-Leninism.*⁷¹ (Emphasis supplied).

The last statement, deliberately vague, is obviously intended to cover a hiatus between the character of the printed matter offered in evidence and what the defendants in the case were charged with doing, or have been proven to have attempted to do. Read carelessly, this sentence could mean that there was proof in the case that the defendants had actually conspired to establish the dictatorship of the proletariat in the United States. Actually, taken in its context, it merely means that the defendants had conspired to teach the doctrine of the desirability, propriety, or necessity, for the establishment of the dictatorship of the proletariat—which is, of course, an entirely different matter. One deals with an actual attempt or conspiracy designed *to do something*, while the other deals with the teaching of a doctrine. It must be borne in mind that *defendants were not indicted for a conspiracy to overthrow the Government of the United States by force and violence*. Nor was there any proof in the case of any such conspiracy. Nevertheless, the Government argued to the jury and the case was actually submitted to the jury by Judge Medina as if the defendants had been indicted for an actual conspiracy to overthrow the Government of the United States by force and violence. The utter lack of legitimacy of such a proceeding was exposed by Professor Nathaniel L. Nathanson. We can do no better than to reproduce his cogent argument on this point. Said Professor Nathanson:

71. *Id.* at 124-125.

The chief objection to this argument is that it attempts to defend the validity of a conviction under the Smith Act on the same basis as if the conviction were for seditious conspiracy. If the factual picture assumed by the argument is correct, the defendants might have been indicted for conspiring "to overthrow, put down, or to destroy by force the Government of the United States, or to levy war against them, or to oppose by force the authority thereof, or by force to prevent, hinder, or delay the execution of any law of the United States." Presumably there might be a gigantic long-term conspiracy, plotted years in advance, the groundwork laid long before the time was ripe for action, but the signals arranged among the conspirators so that they would be ready to spring into action when war, economic collapse, or some natural calamity made the circumstances propitious. If such conspiracy by the particular defendants could have been proved, there would have been no substantial issue of freedom of speech involved. But the important point is that the Government did not choose to prosecute the defendants for the crime of seditious conspiracy; it did not assume the heavy burden of establishing the development of a secret plan of action by the defendants either for the purpose of effectuating their professed philosophy through violence, or for assuring the defeat of the United States in the event of an "imperialistic war." Since the Government did not make that choice, it should not be permitted to becloud the issue of the constitutional right to advocate revolutionary doctrine, by reliance upon evidence which—though it may have been extremely effective in lending a darkly conspiratorial or even treasonable color to the defendants' activities—might not have been sufficient, as a matter of law, to establish the crime of seditious conspiracy.⁷²

It being clear that the defendants were not indicted for an actual conspiracy to overthrow the Government of the United States by force and violence, but for the teaching of a doctrine which might have that effect, it becomes incumbent upon us to examine the character of that doctrine.

VIII. MARXISM-LENINISM BEFORE THE COURTS

As stated by Justice Murphy in his opinion in the *Schneiderman* case, the character of the Communist Party—which means the mean-

72. Nathanson, *The Communist Trial and the Clear-and-Present-Danger Test*, 63 HARV. L. REV. 1167, 1172 (1950) (reprinted by permission Harv. L. Rev. Ass'n).

ing of Marxism-Leninism—has been before the courts of this country for many years past, and had, before the *Schneiderman* case, received contradictory interpretations from the lower Federal courts. In the *Schneiderman* case itself the court authoritatively decided that three of the four documents relied upon by the Government in the Communist Eleven case were not sufficient to prove that the Communist Party taught the doctrine of the overthrow of the Government of the United States by force and violence. In fact, they were insufficient to prove that a leading Communist could not, in 1927 at least, be "attached to the principles of the Constitution of the United States."

The only other important document put in evidence in the present case is the *Program of the Communist International* adopted in 1928. The importance of this document from the prosecution's point of view is evidenced by the fact that counsel for the Government, in their brief in the Court of Appeals, devoted eight pages to a resume of its contents, chapter by chapter, quoting liberally from certain parts and paraphrasing others. The *Program of the Communist International* was before the Court in the *Douds* case, and Mr. Justice Jackson had something very important to say about it, as will be seen when we come to discuss that case. In order to appreciate Justice Jackson's remarks, and because of its general importance in the present case, we shall therefore examine it at some length.

The document (a pamphlet of some 96 pages) is modeled after the *Communist Manifesto* and consists of (1) a historico-philosophical disquisition on the nature of the labor and socialist movement; (2) a dissertation on the role of socialist parties therein; (3) an attack upon other socialist factions; and (4) a statement of general *principles*, upon which the policies of the communist parties of the different countries affiliated with the Communist International *ought* to be based; coupled with the statement *that each communist party is responsible* for the policies to be adopted from time to time.

The important things to bear in mind, therefore, are: First, that it does not lay down any *policy* to be followed at all times and in all countries. Second, that the responsibility for the policy to be followed at any given time by any communist party is its own. Third, that it is as important *not to be revolutionary* at certain times as it is to be revolutionary at others. In this connection it is important to point out that the doctrines laid down by Lenin in his *State and Revolution*, one of the four documents relied upon by the Government were supplemented by him shortly afterwards in a pamphlet

entitled *Infantile Sickness of Leftism in Communism*, containing a severe criticism of left wing "deviations". These two pamphlets constitute Lenin's major works on what may be called the theory of revolutionary policy. The discussions on policy contained in the *Program of the Communist International* were evidently intended to embody Lenin's ideas on the subject.⁷³

In connection with the first point, the following paragraphs are significant:

Hence, it follows that the international proletarian revolution cannot be conceived as a single event occurring simultaneously all over the world; at first socialism may be victorious in a few, or even in one single capitalist country. Every such proletarian victory, however, broadens the basis of the world revolution and consequently, still further intensifies the general crisis of capitalism. Thus, the capitalist system as a whole reaches the point of its final collapse; the dictatorship of finance capital perishes and gives place to the dictatorship of the proletariat. . . .

The political domination of the feudal barons was broken all over the world as the result of a series of separate bourgeois revolutions that extended over a period of centuries. The international proletarian revolution, however, although it will not be a single simultaneous act, *but one extending over a whole epoch*, nevertheless—thanks to the closer ties that now exist between the countries of the world—will accomplish its mission in a much shorter period of time.⁷⁴ (Emphasis supplied).

It will thus be seen that we are dealing not only with a number of revolutions occurring at different periods of time in different countries; but that the period envisaged, while not measured by centuries, is apparently measured at least by generations.

On the second point the following passage is decisive:

In determining its line of tactics, each Communist Party must take into account, the concrete internal and external situation, the cor-

73. Perhaps it should also be added here that although there are occasional references to the United States of America in the course of this long pamphlet, it is composed with a view, primarily, to European situations. This is evidenced by continual references to peasantry in relation with rural or agricultural problems or situations; a reference to confessional trade unions—a phenomenon utterly unknown in this country; and various other allusions and statements that could not have been used by one having the United States in mind.

74. W. H. CHAMBERLAIN, *BLUE PRINT FOR WORLD CONQUEST* 184-185 (1946).

relation of class forces, *the degree of stability and strength of the bourgeoisie, the degree of preparedness of the proletariat*, the position taken up by the various intermediary strata in its country, etc.⁷⁵ (Emphasis supplied).

It is clear that this so-called "Program" is not actually a *program of action* but a general discussion of principles upon which a program of action *might be based*, from time to time, by the affiliated parties, in accordance with the special circumstances prevailing at the time in the particular country.

In connection with the third point the following passage is extremely significant:

In passing over to new and more radical slogans, the Parties must be guided by the fundamental rule of the political tactics of Leninism, which call for ability to lead the masses to revolutionary positions in such a manner that the masses may, by their own experience, convince themselves of the correctness of the Party line. Failure to observe this rule must inevitably lead to isolation from the masses, *to putschism*, to the ideological degeneration of Communism into "Leftist" dogmatism and to petty-bourgeois "revolutionary" adventurism.⁷⁶

The quintessence of the Communist doctrine is contained in the following passage:

When a revolutionary situation is developing, the Party advances certain transitional slogans and partial demands corresponding to the concrete situation; but these demands and slogans must be bent to the revolutionary aim of capturing power and of overthrowing bourgeois capitalist society. The Party must neither stand aloof from the daily needs and struggle of the working class nor confine its activities exclusively to them. The task of the Party is to utilize these minor every day needs as a starting point from which to lead the working class to the revolutionary struggle for power.

In the event of a revolutionary upsurge, if the ruling classes are disorganized, the masses are in a state of revolutionary ferment and the intermediary strata are inclining towards the proletariat, if the

75. THE PROGRAM OF THE COMMUNIST INTERNATIONAL 80 (2d ed. 1933).

76. W. H. CHAMBERLAIN, BLUE PRINT FOR WORLD CONQUEST 240 (1946). It should be added that in other parts of the Program, it is clearly indicated that force ought and will be used only by way of defense against the capitalist class, which is expected to use violence in order to maintain its power.

masses are ready for action and for sacrifice, the Party of the proletariat is confronted with the task of leading the masses to a direct attack upon the bourgeois state. This it does by carrying on propaganda in favor of increasingly radical transitional slogans (*for Soviets, workers' control of industry, for peasant committees for the seizure of big landed properties*, for disarming the bourgeoisie and arming the proletariat, etc.), and by organizing mass action, upon which all branches of the Party agitation and propaganda, *including parliamentary activity*, must be concentrated.

When there is no revolutionary upsurge, the Communist Party must advance partial slogans and demands that correspond to the every day needs of the toilers, linking them up with the fundamental tasks of the Communist International. *The Communist Parties must not, however, at such a time, advance transitional slogans that are applicable only to revolutionary situations (for example, workers' control of industry, etc.)* Partial demands and slogans generally form an essential part of correct tactics; but certain transitional slogans go inseparably with a revolutionary situation.⁷⁷ (Emphasis supplied).

It will thus be seen that this doctrine recognizes three distinct kinds of communist activity, suited to three different kinds of situations: (1) ordinary times; (2) times when a revolutionary situation is "developing"; and, (3) times of "revolutionary upsurge". And, as appears from another passage, the communist parties of the world are particularly warned against using the tactics suited for a period of "revolutionary upsurge" at any other time.

It is clear, therefore, that this document does not, in itself, indicate the use of a particular tactic on the part of any particular communist party at any given time. The decision upon an actual concrete tactic to be followed at any given time is left to the decision of each party—much as questions of fact are left to the decision of a jury upon the evidence in each case, under instructions of the Court as to the legal principles applicable to various factual situations, the finding of which is the province of the jury.

The actual tactic of a particular communist party in a particular country at a particular time therefore depends upon two things: First, the actual political and economic situation existing at the time; and, second, the correctness of the estimate by the particular communist party of the situation.

77. THE PROGRAM OF THE COMMUNIST INTERNATIONAL 80-84 (2d ed. 1933).

The actual tactic followed by the Communist Party of the U.S.A. in any particular period of time is therefore a question of fact, and cannot possibly be discovered from an examination of this document.

That the strategy prescribed by this program is compatible with a collaborationist policy in the United States is a matter of history; and is, indeed, an essential ingredient of the theory of the prosecution in this case. Mr. Browder's leadership of the Communist Party lasted for more than ten years, during eight of which the Communist Party of the United States was a member of the Communist International. During all of that period the program in question was the program of the International, and had never been disavowed by the Communist Party of America—as indeed, it could not have been were the Party to remain a part of the Communist International. It is clear, therefore, that if the clear and present danger doctrine ruled this case no conviction could be had without proof of two things: First, that the repudiation of the Browder leadership was due to the fact that the defendants had come to the conclusion that the United States was in a “revolutionary upsurge”; and, secondly, that there *actually* was such a “revolutionary upsurge” in the United States. No attempt was made to prove either of these facts; *and the second could not possibly have been proven.*

Without entering into a detailed examination of the facts in the case, it is sufficient to say that the evidence is quite compatible with the theory that the repudiation of the Browder leadership was due not to the fact that those who directed it or carried it out believed that there was a “revolutionary upsurge” in the United States, but rather to the fact that Browder had offended against the declaration of the program that the class struggle existed in all three phases described in the program, and that a communist party was therefore necessary in every capitalist country in whatever stage it may happen to be. Browder's offense, on this view, therefore consisted in dissolving the Communist Party and supplanting it by the Communist Political Association. The reconstitution of the Communist Party followed as a matter of course. This aspect of the question, is, however, unimportant, since the existence of a clear and present danger does not depend on the views of the defendants as to the situation but on the actual situation which would make the propagation of their views dangerous. On that aspect of the question Mr. Justice Jackson had something to say in the *Communist Affidavit* case, to the consideration of which the next section of this article will be devoted.